
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with company A

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Deliberation no. 15FR/2023 of December 14, 2023

The National Commission for Data Protection sitting in a restricted formation, composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection, in particular Article 41;

Having regard to the internal regulations of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular Article 10.2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular Article 9;

Considering the following:

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I. Facts and Procedure

1.

During its deliberation session on July 14, 2023, the National Commission for Data Protection (hereinafter: the "CNPD" or the "National Commission") sitting in plenary formation decided to open an investigation into company A based on Article 38 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection (hereinafter: the "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the head of the investigation.

2.

The said decision specified that the investigation conducted by the National Commission aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the "GDPR"), the law of August 1, 2018, and more specifically compliance with Article 30 of the GDPR concerning the register of processing activities and legal texts providing for specific provisions regarding the protection of personal data.¹

3.

Company A is [...] registered in the Trade and Companies Register of Luxembourg under number [...] and has its registered office at [...] (hereinafter: the "controlled entity"). The controlled entity's purpose is [the construction of residential and non-residential buildings].²

4.

On October 3, 2023, agents of the CNPD conducted an on-site visit at

the registered office of the controlled entity.

5.

By email dated October 4, 2023, the controlled entity provided the CNPD with additional information requested during the said visit.

6.

The "Report no. [...] concerning the on-site visit conducted on October 3, 2023, at company A" (hereinafter: the "report concerning the on-site visit") prepared by the agents of the CNPD was sent to the controlled entity by email on October 16, 2023.

7.

At the end of his investigation, the head of the investigation notified the controlled entity on October 31, 2023, of a "[i]nformation of a proposal for closure" specifying that the verifications carried out in the context of the investigation in question led him not to retain

1 Deliberation No. [...] of July 14, 2023, of the National Commission for Data Protection regarding the opening of an investigation mission with company A.

2 Coordinated statutes of the controlled entity as of [...], Article [...].

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of the grievances related to the subject of the investigation against the controlled entity (hereinafter: the "communication of absence of grievances").

8.

By email dated November 16, 2023, the head of the investigation transmitted the investigation file to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") along with a closure proposal (hereinafter: "the closure proposal").

9.

The Restricted Formation examined the case during the deliberation session on December 14, 2023.

10.

The decision of the Restricted Formation on the outcome of the investigation is based on:

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the maintenance by the controlled entity of a register of processing activities pursuant to Article 30.1, 3, and 4 of the GDPR; and

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the legal and regulatory provisions taken into account by the head of the investigation in his communication of absence of grievances.

11.

Article 30 of the GDPR states that

"1. Each data controller and, where applicable, the representative of the data controller shall maintain a record of processing activities carried out under their responsibility.

This record shall contain all of the following information:

a) the name and contact details of the data controller and, where applicable, the joint data controller, the representative of the data controller, and the data protection officer;

b) the purposes of the processing;

c) a description of the categories of data subjects and the categories of personal data;

d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

e) where applicable, transfers of personal data to a third country or to an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49(1), second subparagraph, the documents evidencing the existence of appropriate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational security measures referred to in Article 32(1).

[...]

3. The records referred to in paragraphs 1 and 2 shall be in written form, including in electronic form.

4. The data controller or the processor and, where applicable, their representative shall make the record available to the supervisory authority upon request.

[...]"

12.

The Restricted Formation first observes that during the on-site visit on October 3, 2023, the controlled entity stated that it had established a register of processing activities existing "in electronic form as well as in paper format."³ Additionally, on this occasion, a copy of the "Current Register of Processing Activities of the Controlled Entity" titled "REGISTER OF PROCESSING ACTIVITIES OF COMPANY A" (hereinafter: the "register of the controlled entity's processing activities") was provided to the agents of the CNPD⁴.

13.

It also notes that the head of the investigation states in the communication of absence of grievances that "the Controlled Entity presented to the agents of the CNPD, on the day of the on-site visit, a register of processing activities containing all the categories of information required under Article 30.1 of the GDPR."⁵ It notes that the investigation file shows that the agents of the CNPD verified the existence of the register of the controlled entity's processing activities and confirmed that all the information required by Article 30.1 of the GDPR was included.

3 Minutes of the on-site visit, point I.6.

4 Minutes of the on-site visit, point H.; document 1 from the head of the investigation.

5 Communication of absence of grievances, point "2. Observed facts".

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14.

It finally notes that the head of the investigation specified in the closure proposal that he believed the investigation had not revealed any facts constituting a violation of the GDPR or the law of August 1, 2018.

15.

Therefore, given that the register of the controlled entity indeed contains all the information required by Article 30.1 of the GDPR, the Restricted Formation agrees with the head of the investigation's proposal and is of the opinion that the investigation can be closed in accordance with Article 10.2.a) of the internal regulations of the CNPD.

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

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to close the investigation opened during the session of July 14, 2023, of the National Commission for Data Protection regarding company A.

Belvaux, December 14, 2023.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of appeal routes

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.